

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1425
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-135, Arizona Revised Statutes, is amended to
3 read:

4 16-135. Change of residence from one address to another

5 A. An elector who is correcting the residence address shown on the
6 elector's voter registration record shall reregister with the new
7 residence address or correct the voter registration record as prescribed
8 by this section.

9 B. An elector who moves from the address at which the elector is
10 registered to another address within the same county and who fails to
11 notify the county recorder of the change of address before the date of an
12 election shall be allowed to correct the voter registration records at the
13 appropriate polling place for the voter's new address. The voter shall
14 present a form of identification that includes the voter's given name and
15 surname and the voter's complete residence address that is located within
16 the precinct for the voter's new residence address. The voter shall
17 affirm in writing the new residence address and shall be allowed to vote a
18 provisional ballot.

19 C. When an elector completes voting a provisional ballot, the
20 election official shall place the ballot in an envelope for provisional
21 ballots and shall deposit the envelope in the ballot box designated for
22 provisional ballots.

23 D. Within ~~ten~~ [SIX] [SEVEN] calendar days after a general election
24 that includes an election for a federal office and within five ~~business~~
25 CALENDAR days after any other election, a provisional ballot shall be
26 compared to the signature roster for the precinct in which the voter was
27 listed and if the voter's signature does not appear on the signature
28 roster for that election and if there is no record of that voter having
29 voted early for that election, the provisional ballot shall be processed.

1 If the signature roster or early ballot information indicates that the
2 person did vote in that election, the provisional ballot for that person
3 shall remain unopened and shall not be counted.

4 E. An elector may also correct the residence address on the
5 elector's voter registration record by requesting the address change on a
6 written request for an early ballot that is submitted pursuant to section
7 16-542 and that contains all of the following:

8 1. A request to change the voter registration record.

9 2. The elector's new residence address.

10 3. An affirmation that the information is true and correct.

11 4. The elector's signature.

12 Sec. 2. Section 16-201, Arizona Revised Statutes, is amended to
13 read:

14 16-201. Primary elections

15 A primary election shall be held on the ~~first~~ [SECOND TO] LAST
16 Tuesday in ~~August~~ JULY in any year in which a general election or special
17 election is held and at which candidates for public office are to be
18 elected.

19 Sec. 3. Section 16-204, Arizona Revised Statutes, is amended to
20 read:

21 16-204. Declaration of statewide concern: consolidated
22 election dates; definition

23 A. The legislature finds and determines that for the purposes of
24 increasing voter participation and for decreasing the costs to the
25 taxpayers it is a matter of statewide concern that all elections in this
26 state be conducted on a limited number of days and, therefore, the
27 legislature finds and declares that the holding of all elections on
28 certain specific consolidated days is a matter of statewide concern. This
29 section preempts all local laws, ordinances and charter provisions to the
30 contrary.

31 [B. For elections held before 2014 and notwithstanding any other
32 law or any charter or ordinance of any county, city or town to the
33 contrary, an election held for or on behalf of a county, city or town, a
34 school district, a community college district or special districts
35 organized pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33
36 may only be held on the following dates:

37 1. Except for regular elections for candidates in a city or town
38 with a population of one hundred seventy-five thousand or more persons,
39 all elections, including recall elections and special elections to fill
40 vacancies, shall be held on:

41 (a) The second Tuesday in March.

42 (b) The third Tuesday in May.

43 (c) The tenth Tuesday before the first Tuesday after the first
44 Monday in November.

45 (d) The first Tuesday after the first Monday in November.
46 Notwithstanding any other law, an election must be held on this date for
47 the approval of an obligation or other authorization requiring or

1 authorizing the assessment of secondary property taxes by a county, city,
2 town, school district, community college district or special taxing
3 district, except as provided by title 48.

4 2. For regular elections that are only for candidates in a city or
5 town with a population of one hundred seventy-five thousand or more
6 persons and not including recall elections and special elections to fill
7 vacancies in those cities or towns, elections shall be held on:

8 (a) The tenth Tuesday before the first Tuesday after the first
9 Monday in November.

10 (b) The first Tuesday after the first Monday in November.

11 C. For elections held before 2014, for any city or town, including
12 a charter city, that holds its regularly scheduled candidate elections in
13 even-numbered years pursuant to subsection B, paragraph 2 of this section,
14 the term of office for a member of the city council or for the office of
15 mayor begins on or after the second Tuesday in January in the year
16 following the election.]

17 [D.] [B.] Subsections [B and] C [AND D] of this section do not
18 apply to an election regarding a county or city charter committee or
19 county or city charter proposal that is conducted pursuant to article
20 XIII, section 2 or 3 or article XII, section 5, Constitution of Arizona.

21 [E.] [C.] Beginning with elections held in 2014 and later and
22 notwithstanding any other law or any charter or ordinance to the contrary,
23 a candidate election held for or on behalf of any political subdivision of
24 this state other than a special election to fill a vacancy or a recall
25 election may only be held on the following dates and only in even-numbered
26 years:

27 1. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
28 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
29 election shall be held on the first [SECOND TO] LAST Tuesday in ~~August~~
30 JULY. If the political subdivision holds a primary or first election and
31 a general or runoff election is either required or optional for that
32 political subdivision, the first election shall be held on this date,
33 without regard to whether the political subdivision designates the
34 election a primary election, a first election, a preliminary election or
35 any other descriptive term.

36 2. The first Tuesday after the first Monday in November. If the
37 political subdivision holds a general election or a runoff election, the
38 second election held shall be held on this date. If the political
39 subdivision holds only a single election and no preliminary or primary or
40 other election is ever held for the purpose of reducing the number of
41 candidates, or receiving a partisan nomination or designation or for any
42 other purpose for that political subdivision, the single election shall be
43 held on this date.

44 [E.] [D.] Beginning with elections held in 2014 and later that are
45 not candidate elections, an election held for or on behalf of any
46 political subdivision of this state, and including a special election to

1 fill a vacancy or a recall election, may only be held on the following
2 dates:

3 1. The second Tuesday in March.

4 2. The third Tuesday in May.

5 3. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
6 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
7 election shall be held on the first [SECOND TO] LAST Tuesday in ~~August~~
8 JULY.

9 4. The first Tuesday after the first Monday in November.
10 Notwithstanding any other law, an election must be held on this date for
11 the approval of an obligation or other authorization requiring or
12 authorizing the assessment of secondary property taxes by a county, city,
13 town, school district, community college district or special taxing
14 district, except as provided by title 48. Notwithstanding any other law,
15 an election must be held on the date specified in this paragraph and only
16 in even-numbered years for the approval of or authorizing the assessment
17 of transaction privilege taxes by a county, city or town.

18 [G.] [F.] Notwithstanding any other law, for an election
19 administered by a county recorder or other officer in charge of elections
20 on behalf of a city, town or school district and that is an all mail
21 ballot election for that city, town or school district, the county
22 recorder or other officer in charge of elections may use a unified ballot
23 format that combines all of the issues applicable to the voters in the
24 city, town or school district requesting the all mail ballot election.

25 [H.] [F.] For the purposes of this section, "political
26 subdivision" means any governmental entity operating under the authority
27 of this state and governed by an elected body, including a city, town,
28 county, school district or community college district or any other
29 district organized under state law but not including a special taxing
30 district.

31 Sec. 4. Section 16-206, Arizona Revised Statutes, is amended to
32 read:

33 16-206. Election day

34 A. The biennial primary election day on the first [SECOND TO] LAST
35 Tuesday in ~~August~~ JULY in the year the general election is held and the
36 biennial general election day on the first Tuesday after the first Monday
37 in November of every even-numbered year are not legal holidays.

38 B. Every public officer or employee is entitled to absence from
39 service or employment for the purpose of voting pursuant to section 16-402
40 on the biennial primary and general election days.

41 ~~<<Sec. 5. Section 16-550, Arizona Revised Statutes, is amended to~~
42 ~~read:~~

43 ~~16-550. Receipt of voter's ballot; cure period; tracking~~
44 ~~system~~

45 ~~A. Except for early ballots tabulated as prescribed in section~~
46 ~~16-579.02 or, beginning in 2026, received at a voting location after a~~
47 ~~voter's identification is confirmed as prescribed by section 16-579,~~

~~1 subsection A, paragraph 4, on receipt of the envelope containing the early
2 ballot and the mail affidavit, the county recorder or other officer in
3 charge of elections shall compare the signature on the envelope with the
4 signature of the elector on the elector's registration record as
5 prescribed by section 16-550.01. If the signature is inconsistent with
6 the elector's signature on the elector's registration record, the county
7 recorder or other officer in charge of elections shall make reasonable
8 efforts to contact the voter, advise the voter of the inconsistent
9 signature and allow the voter to correct or the county to confirm the
10 inconsistent signature. The county recorder or other officer in charge of
11 elections shall allow signatures to be corrected not later than the fifth
12 business CALENDAR day after a primary, general or special election that
13 includes a federal office or the third business day after any other
14 election. If the election is a primary, general or special election that
15 includes a federal office and there are outstanding ballots that require
16 identification or ballot signatures to be corrected or confirmed, in
17 addition to the office's regular business hours, the county recorder's and
18 any city or town clerks' offices that have an agreement with a county to
19 be used as locations at which a voter may submit proof of identification
20 shall be open during regular business hours to allow for curing signatures
21 during the Friday and weekend before and the Friday and weekend after the
22 election. Regular business hours include at a minimum 8:00 a.m. until
23 5:00 p.m. If there are no ballots remaining that require identification
24 or signatures to be cured, the county recorder and city and town clerks
25 are not required to be open during the weekend. If the signature is
26 missing, the county recorder or other officer in charge of elections shall
27 make reasonable efforts to contact the elector, advise the elector of the
28 missing signature and allow the elector to add the elector's signature not
29 later than 7:00 p.m. on election day. If satisfied that the signatures
30 correspond, the recorder or other officer in charge of elections shall
31 hold the envelope containing the early ballot and the completed mail
32 affidavit unopened in accordance with the rules of the secretary of state.
33 Signatures that cannot be verified pursuant to section 16-550.01 or cured
34 pursuant to this section shall be rejected. If the ballot is a
35 conditional provisional ballot, the voter shall provide proof of
36 identification to the county recorder or other officer in charge of
37 elections not later than the fifth business CALENDAR day after a primary,
38 general or special election that includes a federal office or the third
39 business day after any other election. Beginning with the first missing
40 or mismatched signature that is identified after the period of early
41 voting begins through the Monday immediately preceding the election, the
42 county recorder or other officer in charge of elections shall submit daily
43 to the political parties that are qualified for continued representation
44 on the state ballot an updated list of all voters whose signatures are
45 missing or inconsistent with the voter's signature on the voter's
46 registration record. Beginning on the Wednesday immediately following the
47 election through the end of the signature cure period after a primary,~~

~~1 general or special election that includes a federal office, or the third
2 business day after the election for any other election, the county
3 recorder or other officer in charge of elections shall submit daily to the
4 political parties that are qualified for continued representation on the
5 state ballot an updated list of all voters whose signatures are
6 inconsistent with the voter's signature on the voter's registration record
7 and all voters who voted with a conditional provisional ballot. This list
8 of voters whose signatures require curing shall include for those voters
9 all voter information that is provided to the political parties that are
10 qualified for continued representation on the state ballot as prescribed
11 by section 16-168.~~

~~12 B. The recorder or other officer in charge of elections shall
13 thereafter safely keep the mail affidavits and early ballots in the
14 recorder's or other officer's office and may deliver them for tallying
15 pursuant to section 16-551.~~

~~16 C. Processing and tabulation of individual ballots may begin
17 immediately after the envelope and completed mail affidavit are processed
18 pursuant to this section and delivered to the early election board and
19 shall continue without delay until completed. Until election day, the
20 early election board and the county recorder or other officer in charge of
21 elections shall:~~

~~22 1. Not access an aggregated complete results file of early voting
23 and vote by mail ballots that were processed and tabulated by the end of
24 the early voting period.~~

~~25 2. Not produce for internal or external use an aggregated results
26 report or associated files of complete results.~~

~~27 3. Only produce a partial results report or associated files if it
28 is part of the internal preparation for the hand count pursuant to section
29 16-602 or for the logic and accuracy testing required pursuant to section
30 16-449.~~

~~31 4. Not publicly release complete or partial results, whether for
32 internal or external use, until all precincts have reported or one hour
33 after the closing of the polls on election day, whichever is earlier.~~

~~34 D. The county recorder or other officer in charge of elections
35 shall post on its website within forty-eight hours after all ballot
36 tabulation is complete all system log files and other similar files from
37 the election management system that verify compliance with subsection C of
38 this section.~~

~~39 E. The county recorder shall send a list of all voters who were
40 issued early ballots to the election board of the precinct in which the
41 voter is registered.~~

~~42 F. For a county that uses early ballots, the county recorder or
43 other officer in charge of elections shall provide an early ballot
44 tracking system that indicates whether the voter's early ballot has been
45 received and whether the early ballot has been verified and sent to be
46 tabulated or rejected. The county recorder or other officer in charge of~~

1 ~~elections shall provide voters with access to the early ballot tracking~~
2 ~~system on the county's website.~~

3 ~~6. This section does not apply to:~~

4 ~~1. A special taxing district that is authorized pursuant to section~~
5 ~~16-191 to conduct its own elections.~~

6 ~~2. A special district mail ballot election that is conducted~~
7 ~~pursuant to article 8.1 of this chapter.>>~~

8 Sec. 5. Section 16-558.02, Arizona Revised Statutes, is amended to
9 read:

10 16-558.02. Replacement ballots; observers

11 A. The county recorder or other officer in charge of elections
12 shall determine a central location in the district and shall provide for a
13 ballot replacement center that is as near to that location as is
14 practicable for electors to obtain a replacement ballot or for an elector
15 who is listed as inactive to confirm or revise the elector's voter
16 registration information and receive a ballot. The location shall be open
17 from 6:00 a.m. until 7:00 p.m. of the day of the election. An elector may
18 obtain a replacement ballot until 7:00 p.m. on the day of the election on
19 presenting a signed, sworn statement that the ballot was lost, spoiled,
20 destroyed or not received.

21 B. The recorder or other officer in charge of elections shall keep
22 a record of each replacement ballot provided pursuant to this section.

23 C. If an elector to whom a replacement ballot is issued votes more
24 than once, only the first ballot received shall be counted.

25 D. FOR EACH BALLOT REPLACEMENT LOCATION, THE COUNTY CHAIRMAN OF
26 EACH PARTY MAY DESIGNATE BY WRITTEN APPOINTMENT ADDRESSED TO THE ELECTION
27 BOARD A PARTY REPRESENTATIVE AND ALTERNATES TO SERVE AS OBSERVERS. A
28 PARTY REPRESENTATIVE SHALL BE A RESIDENT OF THIS STATE AND REGISTERED TO
29 VOTE IN THIS STATE.

30 Sec. 6. Section 16-590, Arizona Revised Statutes, is amended to
31 read:

32 16-590. Appointment of challengers and party representatives

33 A. The county chairman of each party may DESIGNATE, for each
34 precinct OR LOCATION, by written appointment addressed to the election
35 board, ~~designate~~ a party agent or representative and alternates for a
36 polling place in the precinct AND AT ANY VOTING CENTER, INCLUDING AN
37 IN-PERSON EARLY VOTING LOCATION AND AN EMERGENCY VOTING LOCATION, who may
38 act as challengers for the party which appointed him.

39 B. At each voting place, one challenger for each political party
40 may be present and act, but ~~no~~ A challenger may NOT enter a voting booth
41 except to mark his ballot.

42 C. Not more than the number of party representatives for each party
43 ~~which~~ THAT were mutually agreed ~~upon~~ ON by each political party
44 represented on the ballot shall be in the ~~polling place~~ VOTING PLACE at
45 one time. If such agreement cannot be reached, the number of
46 representatives shall be limited to one in the ~~polling place~~ VOTING PLACE
47 at one time for each political party.

1 D. A challenger or party representative shall be a resident of this
2 state and registered to vote in this state.

3 Sec. 7. 2026 primary election; nomination petition forms;
4 local initiative petition forms; previous primary
5 election date

6 A. A person who desires to become a candidate at the 2026 primary
7 election, who collects signatures on a nomination petition or nomination
8 paper form, including an electronic petition with signatures as prescribed
9 by section 16-316, 16-317 or 16-318, Arizona Revised Statutes, before, on
10 or after the effective date of this ~~[section]~~ [act] and who has used a
11 petition form that includes the former primary election date of August 4,
12 2026 may lawfully submit those signatures for the 2026 primary election to
13 be held on July ~~[28]~~[21], 2026. Signatures that are collected with the
14 August 4, 2026 primary election date, that are submitted as prescribed in
15 this subsection and that otherwise comply with the requirements provided
16 by law are deemed to be as valid as signatures collected on a nomination
17 petition or nomination paper form, including an electronic petition with
18 signatures as prescribed by section 16-316, 16-317 or 16-318, Arizona
19 Revised Statutes, that complies with the newly designated primary election
20 date of July ~~[28]~~[21], 2026 and shall not be ruled invalid due solely to
21 the changed date of the primary election or for any clerical error by an
22 election official in the preparation of the electronic petition. The
23 filing officer shall not reject those nomination petitions, nomination
24 papers or signatures based solely on the date of the primary election.
25 This subsection applies to and includes nomination petitions, nomination
26 papers and signatures that are submitted through the secure online
27 signature collection system provided by the secretary of state.

28 B. Any city, town or county initiative ~~[or referendum]~~ petition
29 that is circulated before, on or after the effective date of this
30 ~~[section]~~ [act] and that is on a petition form that includes the former
31 2026 primary election date of August 4, 2026 may lawfully submit those
32 petitions and signatures for the primary election to be held on July
33 ~~[28]~~[21], 2026. Signatures that are collected with the August 4, 2026
34 primary election date, that are submitted as prescribed in this subsection
35 and that otherwise comply with the requirements provided by law are deemed
36 to be as valid as signatures collected on an initiative ~~[or referendum]~~
37 petition form that complies with the newly designated primary election
38 date of July ~~[28]~~[21], 2026 and shall not be ruled invalid due solely to
39 the changed date of the primary election. The filing officer shall not
40 reject those ~~[petitions or]~~ signatures [or petitions] based solely on the
41 date of the primary election.

42 C. This section does not require a person to file a new or amended
43 statement of interest based solely on the change in the 2026 primary
44 election date.

1 Sec. 8. 2026 primary election date; city, town and county
2 matters

3 Any election item that was duly called by a city, town or county
4 pursuant to section 16-226, Arizona Revised Statutes, for the August 4,
5 2026 primary election date shall be placed on the ballot for the newly
6 designated primary election date of July ~~[28]~~[21], 2026.

7 <<Sec. 9. Legislative intent

8 [The legislature intends and finds that this act does not make
9 changes to the length of time during which voter signatures are allowed to
10 be cured and conditional provisional ballot voters are allowed to provide
11 proof of identification, and that Laws 2024, chapter 1, section 22, as
12 amended by Laws 2024, chapter 2, section 4, continues to apply to all
13 primary, general or special elections that include a federal office in
14 2026.]>>

15 Sec. 10. Emergency

16 This act is an emergency measure that is necessary to preserve the
17 public peace, health or safety and is operative immediately as provided by
18 law.

19 Enroll and engross to conform

20 Amend title to conform

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